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PART I—Orders and Notifications by the Governor of West Bengal, the High Court, Government Treasury, etc.

GOVERNMENT OF WEST BENGAL
FINANCE DEPARTMENT
REVENUE

NOTIFICATION

No. 601–F.T. **Dated, Howrah, the 16th day of April, 2025**

[*Corresponding Central Notification No. 11/2025-Central Tax*]

In exercise of the powers conferred by section 164 of the West Bengal Goods and Services Tax Act, 2017 (West Ben. Act XXVIII of 2017), the Governor, on the recommendations of the Council, is pleased hereby to make the following rules further to amend the West Bengal Goods and Services Tax Rules, 2017, namely:–

1. **Short title and commencement.**– (1) These rules may be called the West Bengal Goods and Services Tax (Third Amendment) Rules, 2025.

   (2) They shall be deemed to have come into force with effect from the 27th day of March, 2025.

2. In the West Bengal Goods and Services Tax Rules, 2017, in rule 164,–

   (a) in sub-rule (4),

      (i) after the words "after payment of the full amount of tax", the words "related to period mentioned in the said sub-section and" shall be *inserted*;

      (ii) after sub-rule (4), the following Explanation shall be *inserted*, namely:–

      "*Explanation*,– No refund shall be available for any tax, interest, and penalty, which has already been discharged for the entire period, prior to the commencement of the West Bengal Goods and Services Tax (Third Amendment) Rules, 2025, in cases where a notice or statement or order mentioned in sub-section (1) of section 128A, includes a demand of tax, partially for the period mentioned in the said sub-section and partially for a period other than mentioned in the said sub-section.".

(b) in sub-rule (7), after the first proviso, the following proviso shall be *inserted,* namely:–

"Provided further that where the notice or statement or order mentioned in sub-section (1) of section 128A of the Act includes demand of tax, partially for the period mentioned in the said sub-section and partially for the period other than that mentioned in the said sub-section, the applicant instead of withdrawing the appeal, shall intimate the appellate authority or Appellate Tribunal that he does not wish to pursue the appeal for the period mentioned in the said sub-section and the relevant authority shall, after taking note of the said request, pass such order for the period other than that mentioned in the said sub-section, as he thinks just and proper.

Explanation,– For the removal of doubt, it is clarified that the appeal application shall be deemed to have been withdrawn to the extent of the said intimation for the period from the 1st July, 2017 to the 31st March, 2020 or part thereof, for the purpose of sub-clause (3) of section 128A."

By order of the Governor,

MALAY GHOSH, IAS
OSD & Ex-Officio Secretary
to the Government of West Bengal.

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